

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF YAKHNOVETS AND OTHERS v. RUSSIA

(Applications nos. 32174/21 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

18 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Yakhnovets and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also, except for the fourth applicant, raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies;

Karelin v. Russia, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Péter Paczolay
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	32174/21 11/06/2021	**Viktoriya Viktorovna YAKHNOVETS** 1966	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Rostov-on-Don 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Rostov Regional Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.30 p.m. on 31/01/2021 to 5.00 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Rostov Regional Court, 10/02/2021; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	33066/21 04/06/2021	**1) Nikolay Yevgenyevich VOKUYEV** 1986 **2) Stanislav Mikhaylovich OKULOV** 1984	Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou	Rally in support of Mr Navalnyy Syktyvkar 23/01/2021	article 20.2 § 5 of CAO	fines of RUB 10,000 for each of the applicants	Supreme Court of the Komi Republic, 31/03/2021 (first applicant) and	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Supreme Court of the Komi Republic, 31/03/2021 and 07/04/2021.	3,500 to each applicant

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							07/04/2021 (second applicant)		
3.	33571/21 22/06/2021	**Valeriya Mikhaylovna IVANOVA** 1996	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally in support of Mr Navalnyy Velikiy Novgorod 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Novgorod Regional Court 25/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.15 p.m. to 11.30 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Novgorod Regional Court, 25/02/2021.	4,000
4.	35257/21 24/06/2021	**Liliya Vasilyevna LOBKO** 1940	Tykhta Vitaliy Dmitriyevich Khabarovsk	Rally in support of Mr Furgal Khabarovsk 09/11/2020	article 20.2 § 5 of CAO	fine of RUB 5,000	Khabarovsk Regional Court 24/12/2020		3,000
5.	35379/21 16/06/2021	**Aleksey Vladimirovich GRESKO** 1974	Zakhvatov Dmitriy Igorevich Moscow	Meeting Mr Navalnyy at the Vnukovo Airport of Moscow Moscow 17/01/2021	article 19.3 § 1 of CAO	administrative detention for 12 days	Moscow City Court 20/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.10 p.m. to 11.00 p.m. on 17/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 20/02/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
6.	36383/21 30/06/2021	**Nikita Igorevich CHESNOKOV** 1996	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Rostov-on-Don 31/01/2021	article 19.3 § 1 of CAO	administrative detention for 3 days	Rostov Regional Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.00 p.m. on 31/01/2021 to 1.00 p.m. on 01/02/2021, hearing in the applicant's administrative offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Rostov Regional Court, 28/04/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
7.	36389/21 05/07/2021	**Valentin Sergeyevich KVASHNIKOV** 1978		Rally in support of Mr Furgal Khabarovsk 23/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 21/01/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Khabarovsk Regional Court, 21/01/2021 and 04/06/2021.	3,500
8.	36506/21 27/06/2021	**Vadim Vyacheslavovich ZUBKOV** 1996	Bochilo Anna Yevgenyevna Barnaul	Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.00 a.m. on 08/02/2021 until the hearing in the applicant's administrative-offence case on the same day, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 11/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
9.	37916/21 16/07/2021	**Olga Alekseyevna KOMOLOVA** 1999	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 p.m. on 02/02/2021 to 7.50 a.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 14/04/2021,	4,000
10.	38412/21 02/07/2021	**Dmitriy Vladimirovich VILSHANSKIY** 1991	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 p.m. on 02/02/2021 to 8.30 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 12/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
11.	38516/21 14/07/2021	**Boris Vladimirovich SARAPULOV** 1957	Ivanets Vyacheslav Sergeyevich Tbilisi, Georgia	Rally in support of Mr Navalnyy Irkutsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Irkutsk Regional Court 01/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Irkutsk Regional Court, 01/06/2021	3,500
12.	38906/21 14/07/2021	**Artur Igorevich SAYAPIN** 1994	Bubon Konstantin Vladimirovich Khabarovsk	Rally in support of Mr Furgal Khabarovsk 25/08/2020	article 20.2 § 6.1 of CAO	administrative detention for 2 days (enforced), changed later to a fine of RUB 10,000 (not paid)	Khabarovsk Regional Court 04/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from midnight on 04/09/2020 to 10.30 a.m. on 05/09/2020, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the administrative detention was enforced immediately after the decision of the first-instance court on account of the lack of suspensive effect of an appeal under the CAO.	5,000
13.	38914/21 22/07/2021	**Yegor Nikolayevich BELOV** 1995	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.00 p.m. to 5.00 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 19/05/2021.	4,000
14.	39896/21 27/07/2021	**Pavel Nikolayevich LUSHAKOV** 1998	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from on 11.00 a.m. 02/02/2021 to 8.00 p.m. 03/02/2021, the applicant was not released after the	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								administrative offence record had been compiled; complaint raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 10/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
15.	40196/21 27/07/2021	**Petr Aleksandrovich MAKAROV** 2000	Shindyapin Arkadiy Vitalyevich Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.25 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 05/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
16.	40444/21 27/07/2021	**Sergey Yuryevich AFANASYEV** 1965	Shindyapin Arkadiy Vitalyevich Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.50 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 05/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
17.	40532/21 30/07/2021	**Aleksandr Vladimirovich SMIRNOV** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr Navalnyy Yaroslavl 31/01/2021	article 20.2 § 2 of CAO	administrative detention for 10 days	Yaroslavl Regional Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.25 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case.	5,000
18.	40877/21 02/08/2021	**Klim Dmitriyevich BONDAR** 2002	Eysmont Mariya Olegovna Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 8 days	Moscow City Court 05/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.50 p.m. on 31/01/2021 to 5.00 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 05/02/2021.	5,000
19.	41620/21 06/08/2021	**Sergey Nikolayevich OZEROV** 1976	Pershakova Yelena Yuryevna Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 15 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.40 p.m. 31/01/2021 to midnight on 01/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 12/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
20.	42996/21 10/08/2021	**Valentina Yevgenyevna VOLKOVA** 1978	Lepekhin Andrey Gennadyevich Chelyabinsk	Collective recording a video petition to the US President and the world community regarding the poor ecological conditions Chelyabinsk 12/12/2020	article 20.2 § 2 of CAO	fine of RUB 20,000	Chelyabinsk Regional Court 10/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Chelyabinsk Regional Court, 10/02/2021.	3,500
21.	43200/21 11/08/2021	**Roman Alekseyevich ZHURAVLEV** 1995	Nurgaleyev Danil Ilnurovich Kazan	Rally in support of Mr Navalnyy Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 10/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 23/01/2021 to 2.30 p.m. on 24/01/2021	4,000
22.	43242/21 09/08/2021	**Viktor Yuryevich YEZHOV** 1966	Eysmont Mariya Olegovna Moscow	Rally in support of Mr Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 31/01/2021 to 4.30 p.m. on 01/02/2021,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 12/02/2021.	
23.	43501/21 18/08/2021	**Vyacheslav Nikolayevich TITOV** 1988	Pershakova Yelena Yuryevna Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention for 10 days	Moscow City Court 24/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.30 p.m. on 02/02/2021 to 12.00 a.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 24/03/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
24.	43680/21 10/08/2021	**Vladimir Aleksandrovich LAZAR** 1999	Zhdanov Ivan Yuryevich Vilnius	Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, from 4.30 p.m. to an unspecified time on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 04/03/2021.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
25.	44318/21 09/08/2021	**Rinat Safayevich SALIKHOV** 1998	Memorial Human Rights Centre Moscow	Rally in support of Mr Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention for 8 days	Moscow City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.45 p.m. on 02/02/2021 to 9.15 a.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 10/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
26.	44678/21 26/08/2021	**Darya Dmitriyevna LEVKINA** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally in support of Mr Navalnyy Kurgan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Kurgan Regional Court 17/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Kurgan Regional Court, 17/03/2021.	3,500
27.	47849/21 08/09/2021	**Yevgeniy Vadimovich ROYZMAN** 1962	Fedotova Yuliya Yekaterinburg	Rally in support of Mr Navalnyy Yekaterinburg 23/01/2021 Rally in support of Mr Navalnyy Yekaterinburg	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 20,000	Sverdlovsk Regional Court 20/05/2021 Sverdlovsk Regional Court,	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Sverdlovsk Regional Court, 13/05/2021, 20/05/2021 and 26/05/2021; Art. 10 (1) - conviction for making calls to participate in public events - calls to participate at two unauthorised public rallies in support to Mr A. Navalnyy, scheduled on 31/01/2021 and on 21/04/2021, under art. 20.2 § 2 of the CAO, administrative detention for one day, final decisions: Sverdlovsk Regional Court, 13/05/2021 (both proceedings).	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges (code of administrative offences, CAO)	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
				31/01/2021 Rally (march) in support of Mr Navalnyy Yekaterinburg 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	13/05/2021 and 20/05/2021 Sverdlovsk Regional Court 26/05/2021		
28.	50470/21 01/10/2021	**Vladislav Vladimirovich BASHKINOV** 2000	Solovyev Stanislav Vyacheslavovich Moscow	Rally in support of Mr Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. to 10.30 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 02/04/2021.	4,000

[1] Plus any tax that may be chargeable to the applicants.